Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1089
Claimant:	James Castillo
Adjuster:	Jerry Hanson

28 Mar 2023
Claim opened after a rear-end collision at a traffic signal. The policyholder's vehicle was struck from behind, and the claimant, who is not represented by counsel, reports neck and back pain following the impact.

30 Apr 2023
Reviewed the police report and the statements from two independent witnesses. Both confirm the collision occurred as described and that the claimant was seated in the vehicle at the time.

15 May 2023
Photographs from the scene and the other driver's account match the reported impact. The rear damage to the vehicle is consistent with a collision of this type, and no earlier damage to this area is known from prior claims or records.

18 May 2023
A repair estimate from before the policy start date lists damage to the same rear area of the vehicle. This conflicts with the assumption that the damage came from this collision and needs to be followed up with the repair shop.

25 Jul 2023
Spoke with the claimant, who has added a few small details about the sequence of events. The core account has not changed from the first report.

16 Sep 2023
The claimant's treatment record shows a usual course of care for a neck and back strain, with visits tapering off as symptoms improved. No prior injury to the same body area is known, and the reported injury is plausible for a crash of this severity.

20 Sep 2023
The drvier is a household member of the policyholder and qualifies for coverage under the policy terms. Recommend holding the file open pending review of the pre-policy repair estimate before any settlement offer is made.

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Recorded Statement

Claim number:	C-1089
Statement of:	James Castillo
Taken by:	Jerry Hanson
Date:	31 Jan 2023

Q: Thanks for taking the time to speak with me today. This recording is for claim file purposes. Can you state your full name for the record?

A: I'd rather just go by my initials for now, if that's okay. It's the same thing, right?

Q: That's fine for the purposes of this statement. Can you tell me where you were when the accident happened?

A: I was stopped at a light on the main road heading into town, in Conroe. I had been waiting a little while because traffic was backed up.

Q: Okay. What happened next?

A: The light was still red, and then all of a sudden I felt this hard jolt from behind. My head snapped back and then forward. I didn't even see the car coming. My foot was on the brake the whole time.

Q: Did you see the vehicle that hit you before the impact?

A: No. I was looking at the light and the cars in front of me. I just heard tires and then the impact.

Q: Were you able to get out of your vehicle at the scene?

A: Yes, I got out and walked around for a minute. My neck was already stiff and my lower back started to ache within an hour or so.

Q: Have you sought any medical attention since the accident?

A: I went to urgent care the same day, and I've been seeing a physical therapist twice a week since then. The doctor said it's a neck and back strain. I'm still having trouble turning my head to the right and sitting for long periods.

Q: Did you have any pain or stiffness in those areas before this accident?

A: Not that I can recall. I had normal days before this happened, and I was working full shifts without much trouble.

Q: Thank you. Is there anything else you'd like to add to your statement?

A: Just that I want to get back to normal as soon as I can. I'm following everything my providers told me to do.

Q: Thank you for your time today.